

Agreement For Use of School Buses

This Agreement is made and entered into between the Board of Education of the Brecksville-Broadview Heights City School District ("Board" or "District") and South Suburban Montessori School (hereinafter "Organization") (collectively the "Parties").

WHEREAS, section 3327.018 of the Revised Code permits the Board to contract, in writing, with a public or private not-for-profit agency, group, or organization, with a municipal corporation or other political subdivision or agency of the state, or with an agency of the federal government to operate its buses to assist the agency, group, organization, or political subdivision in the fulfillment of its legitimate activities and in times of emergency; and

WHEREAS, Organization provides educational, cultural, recreational, vocational, religious, and/or social-services activities to students or residents of the District; and

WHEREAS, Organization seeks to use District-owned bus(es) to assist the Organization in the fulfillment of its legitimate activities that include a trip for an educational purpose(s), described in Exhibit A, Field Trip/Transportation Form; and

WHEREAS, the Board has determined that the Organization's use of District-owned buses will not interfere with the Board's routine transportation services.

NOW, THEREFORE, in consideration of the terms and conditions set forth herein, the Parties agree as follows:

1. **Bus Driver(s):** The buses to be operated in transporting Organization's passengers for the purpose described in Exhibit A shall be operated by an individual(s) who satisfies the requirements of section 3327.10 of the Revised Code and is approved by the Superintendent.
2. **Driver Selection:** The Parties agree that the driver selected to transport the passengers for the purpose contained herein and as described in Exhibit A shall be made exclusively by the Board. In selecting the driver assigned to the trip, the Board shall give consideration to the driver's knowledge, skill, experience, vehicle familiarity, and experience in operating a bus in the area to be traveled.
3. **Pre-Trip Requirements:** Prior to the departure of the school bus to the destination identified in Exhibit A, the Board agrees to complete a pre-trip inspection of the school bus in accordance with Ohio law and applicable regulations as set forth in Board Policy; however, such pre-trip inspection is not required provided the bus received a documented pre-trip inspection during routine service that day performed by the selected driver. Further, the operator of the bus shall provide the passengers with safety instructions at the beginning of the trip. In doing so, the operator of the bus shall identify the buses' safety exits and also inform the passengers that they will be required to keep the aisles of the bus clear at all times and to remain seated while the bus is in motion.

4. **Payment for Board Services:** In consideration of transporting Organization's passengers to and from the destination and for the purpose described in Exhibit A, the Organization shall render payment to the Board in an amount that does not exceed the costs of operation, as specified in Exhibit A.
5. **Insurance:** The Board shall procure General liability for injuries occurring in the course of performing the services described herein in the amount of \$3,000,000 per occurrence. The Board further agrees to procure auto liability insurance in the amount of \$3,000,000 per occurrence.
6. **Indemnification and Hold Harmless:** Organization agrees to indemnify and hold harmless the Board and its agents and employees from all liability, claims, demands, damages, or costs for or arising out of this activity to any person or property in or about District premises or during the use of District-owned buses, from any cause whatsoever, to the extent covered by insurance.
7. **Entirety:** This Agreement embodies the entire agreement and understanding of the parties hereto with respect to the subject matter contained herein, and it supersedes all prior and contemporaneous agreements and understandings, oral or written, relative to the subject matter of this Agreement.
8. **Modification or Amendments:** This Agreement may only be modified or amended by a written instrument signed by all interested Parties.
9. **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the State of Ohio.
10. **Severability:** Each article, paragraph, provision, term, and condition of this Agreement, and any portions thereof, shall be considered severable. If, for any reason, any portion of this Agreement is determined to be invalid or contrary to any applicable law, rule, or regulation, the remaining portions of this Agreement shall be unimpaired, remain binding on the parties, and continue to be in full force and effect.

IN WITNESS WHEREOF, the authorized representatives of the Parties have each set their hand hereunder to signify their intent to be bound by the foregoing terms and conditions.

BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL
DISTRICT

Signature

SOUTH SUBURBAN
MONTESSORI SCHOOL



Signature

Printed Name

Title

Date

Amy Mackie-Barr
Printed Name

Head of School
Title

May 28, 2024
Date